CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
FEBRUARY 10, 2010
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:05 p.m. on Wednesday, February 10, 2010 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: City Manager Clarance Patterson, Interim City Attorney Joseph S. Geller and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

Clerk Irby advised that a request was made to amend the agenda to include the following resolution under item 12 (new items):

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DECLARE THE FIRST FRIDAY OF EVERY FEBRUARY AS SCHOOL CROSSING GUARD APPRECIATION DAY; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H. and J.K.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Commissioner Johnson pulled agenda items 15-9 and 15-12 and Vice Mayor Taylor pulled agenda items 15-1, 15-2, 15-4, 15-5 from the Consent Agenda.

Manager Patterson deleted 15-3, 15-4 and 15-6 from the Consent Agenda.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

8. APPROVAL OF MINUTES:

Special Commission Meeting – January 11, 2010
Special Commission Meeting – January 19, 2010
Regular Commission Meeting – January 27, 2010

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Special Commission Meeting of January 11, 2010, Special Commission Meeting of January 19, 2010 and Regular Commission Meeting of January 27, 2010.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes

Commissioner Johnson	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

Larry Gardner, Community Liaison, Miami-Dade County Commissioner Barbara Jordan, District 1 was present to address any concerns.

10. PUBLIC PRESENTATION:

1. Terence Pinder
re: Welfare of the City

Terence Pinder of 941 Ali-baba Avenue, Opa-locka, Florida appeared before the City Commission and commended them as a body for a job well done.

10a. CITIZENS' FORUM:

Steven Barrett of 633 Sharar Avenue, Opa-locka, Florida came forward and spoke in favor of the first reading ordinance reference Drug Free Workplace. With regards to agenda item 15-3 which was deleted from the agenda, he suggested that the Commission consider utilizing local car wash vendors in the city.

He spoke in opposition to agenda item 15-12 authorizing payment to former City Attorney Burnadette Norris-Weeks.

He further stated that Roadrunner and his crew are doing a great job with the lawn services being provided to the city.

Tony Brown of 2762 NW 131st Street, Opa-locka, Florida, came forward on behalf of all the residents of Villa Francine for the city's effort in trying to bring a resolution to the contamination issue on site. However, he asked, what would the city be doing with regards to Miami-Dade County's order which states that the city has authority to demolish the unfinished structures on the property. The former City Manager had worked on getting stimulus money to have the structure demolished but that wasn't successful.

He continued by suggesting that the city move forward with demolishing the unfinished structures. He urged that the Commission, City Manager and staff work diligently in an effort to bring a resolution to demolish the unsafe structures on the property.

Mayor Kelley advised Mr. Brown that he, along with the City Manager and Community Development conducted a site visit several days ago and Community Development will speak to him because there is progress being made on some of the issues raised relating to demolition. He directed the City Manager to make sure the City Commission is updated on the plans for that property and the concerns raised by Mr. Brown.

Mr. Brown noted that prior to demolishing the unsafe structures; the city would have to contact the Health Department.

Mayor Kelley directed the City Manager to have staff speak to Mr. Brown to update him on the city's progress and plans for that property.

11. ACTION ITEMS (items from consent agenda pull list):

15-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO EXPEND FUNDS IN THE AMOUNT OF TEN THOUSAND DOLLARS ($10,000.00) FOR THE CITY OF OPA-LOCKA BLACK HISTORY MONTH CELEBRATION; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Although Vice Mayor Taylor was in support of the above resolution, she asked if the Black History Month Celebration included all other city departments.

Manager Patterson advised that there are only two departments involved: the Opa-locka Police Department and the Parks & Recreation Department. Because this item was put together before his time, he said he would encourage all departments be actively involved in Black History Month.

Vice Mayor Taylor suggested that all departments are involved in the city's overall Black History Celebration. She further asked if all the vendors listed were city vendors.

Manager Patterson advised that Starex Smith, Parks & Recreation Director was not present at the meeting; however, he would get the information.

Vice Mayor Taylor expressed her concerns about the food vendor Mrs. Juanita and having to rent tables & chairs and a stage when the city already purchased those items to be used for events.

Manager Patterson said he would have an answer to Vice Mayor's concerns the following day.

Mayor Kelley suggested that Vice Mayor Taylor ask the City Manager to not spend the money if he doesn't have to because there's already a motion and second on the resolution.

Since the city had already purchased tables and chairs, Vice Mayor Taylor directed the City Manager to pull those items out of this particular program and pull everyone in to make this one big city celebration.

Mayor Kelley and Commissioner Holmes both stated that the food vendor Mrs. Juanita is a vendor from the city.

Commissioner Holmes suggested that if the city already has tables, chairs and a stage, the Commission could direct the City Manager to avoid spending money unnecessarily for renting those items.

Although she understood that the city should have city wide functions, Commissioner Johnson disagreed with having every department involved. Additionally, she said she wasn't in favor of spending additional money that the city didn't have to spend.

Because the Commission was in agreement with the resolution, Mayor Kelley directed the City Manager, at his discretion, to determine whether or not the city needed to rent the chairs and tables. He said that the City Manager would make sure that everyone is included in the Black History Celebration.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

15-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO ADVERTISE FOR A REQUEST FOR PROPOSAL BID FOR THE DEMOLITION OF UN-SAFE STRUCTURES; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor stated to the City Attorney that she would like to see the resolution amended to include that a fence is erected around the property upon completion of the demolition. Also, the contractors performing the utility work must pull a permit and perhaps the city's off-duty police officers could work on site.

If satisfactory, Attorney Geller stated that he works with the City Manager to approve the language of any RFP and this resolution authorizes the City Manager to draft an RFP. He

said he would make sure this RFP when issued and any future ones that they include as a requirement at the conclusion and as part of the bid that a fence must be placed around the property.

Mayor Kelley said his concern with placing this requirement in the RFP itself but perhaps it would be more cost effective to get a local vendor to erect a temporary fence then having a bidder putting it into the proposal which would make the price go up on the demolition. He agreed with the need to erect a fence once the demolition has occurred; however, it should be separate from the RFP.

He suggested that the City Attorney get with the City Manager to brainstorm and look at what those cost are to determine if it's most cost effective to do it separately as oppose to including it in the RFP.

Attorney Geller suggested that the city require there be a proposal for the fence and it is contained in every proposal for the RFP, ask them to break out the cost of the fencing component and then indicate in the RFP that the city reserves the right to award all or part of the work.

Mayor Kelley stated that the City Attorney's suggestion would be satisfactory.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

15-5: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RELATING TO THE COMPENSATION OF THE CITY CLERK, AS PER THE CITY CLERK'S EMPLOYEE AGREEMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

Vice Mayor Taylor stated that she was in support of the resolution; however, she would like to know if the city was negligent in anyway in this situation as far as the City Clerk's agreement is concerned.

Attorney Geller advised that the contract provides that the City Clerk is to receive periodic raises and apparently that has not been done, so yes, the city has not done what

its suppose to. The contract does state that the raises are to be based on what other employees receive and there are at least one or two cases where other employees were given across the board raises. It appears that the city has not done what it needs to do and they need to not only deal with the issue with what compensation the City Clerk was to have received retroactively that she did not get; but also the issue with what the salary level should be now going forward. He said that there's already a contract and an ordinance that places it into effect, but the City Clerk in an abundance of caution, not wanting to act without her bosses saying to put it on there. Honestly the City Clerk has a legal right even if this resolution was not to pass because a contract is a contract.

Vice Mayor Taylor directed that the City Manager provide the Commission with a report on the financial impact and the City Clerk's budget.

Commissioner Tydus stated that she didn't know why the Commission was considering the resolution because it was her understanding that a check was already issued to the City Clerk. She asked, is that true?

Manager Patterson replied, yes.

Commissioner Tydus asked, why is the Commission considering this resolution? Additionally, the history behind all this needs to be cleared up as well, not saying that the contract does not provide for the annual raises; however, she recalled that the period being covered was during the budget period in which all department heads had agreed not to receive the 3% increase that was across the board for all other employees in an effort to help balance the budget. At that time, the City Clerk agreed to that because there was no opposition at that time. She asked the City Clerk to elaborate as to why she is just bringing this matter up when she agreed with the other department heads?

Clerk Irby stated that she never agreed with the other department heads on anything and she wasn't sure what Commissioner Tydus was talking about.

As the sponsor of the resolution, Commissioner Johnson stated that she met with the City Manager and the City Clerk and in terms of the check mentioned, it was issued for a 3% as oppose to 5% as indicated in contract. The contract also talks about a cost of living increase which the City Clerk has not received. She said this was not the first time the Commission is being made aware of this issue because it was brought up when the former City Manager Mrs. Beverly was here. At that time she spoke to Mrs. Beverly, brought it up on the dais and Mrs. Beverly stated at that time that the money was not in the budget for that particular year; however, when the monies become available through the ad volerem taxes in January then the City Clerk would get her increase. After conducting some research, she was able to find out that almost $200,000.00 has been given to other people, although the City Clerk is the only person who has a contract in the city. She suggested that the Commission is fair to everyone.

In meeting with the City Manager, Finance Director and the City Clerk, the Finance Director provided documentation on the percentage. She asked, what was the percentage spelled out for Mrs. Irby?

Ezekiel Orji, Finance Director / Assistant City Manager for the City of Opa-locka came forward and stated that the amount was 3%.

Commissioner Johnson asked Attorney Geller what percentage is spelled out in the contract.

Although he didn't have the contract in front of him, Attorney Geller recalled that the language in the contract is that the City Clerk was to get everything that other employees got.

Having the contract in front of her, Commissioner Johnson said it spelled out 5% and based on the information on the agreement, the difference between the check issued the previous day which is documented in the accountable papers is 3% and that's what Dr. Orji gave. The contract says 5% and it also says that any other, meaning cost of living raises, should be given to her. The contract was passed by the Commission on February 8, 2006 signed by the City Manager, the City Attorney at that time Mr. Jones and the City Clerk. The contract specifies the condition in which the cost of living and raises should be giving; therefore, based on the contract and all other bonuses and increases, she believes this is warrant.

Commissioner Tydus stated that her question or concern still hasn't been answered. The Commission is talking about equity in so far as contracts because in the past Commissioner Johnson has championed the fact that there should be no more contracts and now the city just has one appointed official that has a contract because the City Manager, Police Chief or City Attorney does not have one. As far as the contract in question, she said yes those things are stated; but her question still is why is this issue just now being brought up?

Commissioner Johnson stated that she has answered to the best of her ability and none of the individuals who signed the document except for the person who attest are there to answer anything further than what's stated on the document.

Commissioner Tydus stated that the city does have other department heads that are still here and if what the city does for one, they must do for all, contract or no contract. In good faith, all department heads, including Mrs. Irby at the time that the freeze on department heads raises was made, there was no opposition by Mrs. Irby. She said her question was and still is why at this late date is this being brought up which is a valid question.

Commissioner Johnson assumed that if it was taken care of at that time then it would not be now and since the department heads all opted not to take the raise, she could provide documentation where some not only got it one time but multiple times. If the

Commission is going to do due diligence, they all need to do discovery to find out who got what because it is not fair for nobody.

Commissioner Tydus stated that she would like to see the documentation and that's the only way she can make a decision on behalf of all department heads. She asked Commissioner Johnson to provide her with the documentation.

Because the information she had was second hand information provided by the city, Commissioner Johnson directed the City Manager to provide the documentation to the Commission; however, if Commissioner Tydus didn't receive the information by the following day then she would provide a copy of hers. Furthermore, the City Clerk is not a department head; she is an appointed official.

Until she received the information and consider it her determination of what should be done for all department heads, Commissioner Tydus said she could not support the resolution.

Commissioner Johnson stated that she didn't know whether or not she would be in a position to vote on all department heads. According to the charter, it is her understanding that she could only vote on the salary for the City Clerk. The City Commission voted not to give any more contracts. She said she was confused and needed clarification to make sure all department heads receive an increase. She suggested that a workshop is held to discuss the matter in terms of the department heads.

Mayor Kelley directed the City Manager to provide the Commission with the documentation and at that time if it is deemed necessary then they would have a workshop. However, this item is before the Commission as item 15-5, the documentation as presented by the sponsor and there's a motion and a seconded.

Vice Mayor Taylor stated that she supports the resolution; however, she was not clear in terms of the 3rd whereas in the resolution. She went back to address Commissioner Tydus concerns as to why this resolution is before them now and it is now because the City Clerk wants her due diligence according to her agreement; not based on what somebody has although she likes one for all and all for one which is fair. For now, according to her agreement she asking what's due her not based on anybody else and that's why she asked the City Attorney if he was going to fix it. The third whereas in the resolution reads: "such amount as extended to other employees" but other employees does not have an agreement so the Commission has to go along with what the City Clerk's agreement is.

Commissioner Tydus asked the City Attorney what was the purpose of the Commission considering this resolution if the City Clerk was already paid?

Attorney Geller stated that there's an issue in terms of the amount of the payment and there's a question as to the amount that the salary is to be going forward. Because the City Clerk works directly for the City Commission, it's being put forth before them to assist the City Manager in knowing that he can move forward on it. This way the City

Manager can resolve and it would avoid any possibility of some kind of legal action and that's the reason to get the approval.

Commissioner Tydus stated that the resolution does not include any of the conditions of the contract including the amount; the resolution is very vague and incomplete.

Attorney Geller apologized to Commissioner Tydus for feeling that way but he wasn't going to try and do the job of Finance because that's something Finance, through the City Manager, needs to work out and come up with the exact numbers. This is for the Commission to authorize it but he wasn't going to attempt to ask the Commission to sit up there and do the math.

Commissioner Tydus agreed and said that the numbers should be before the Commission because they shouldn't have to sit up there wondering what it is; there's no dollar amount on the resolution at all. If the City Attorney was preparing the resolution then she would think that he would request the information needed to be included.

Attorney Geller said that his understanding is that it is contractually provided; it's not to be fixed by the Commission and it is not a matter that the Commission is to determine the amount because there's a contract that provides for it.

Commissioner Tydus stated that she didn't say the Commission should determine an amount; but the amount should be included in the resolution.

Based on the passage of this resolution, Attorney Geller stated that it was his understanding that Finance and the City Manager would review the record, get with the City Clerk and come up with the exact amount pursuant to the contract and that's how he prepared it.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	No
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

15-9: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO FILE A GRANT APPLICATION FOR FUNDS IN THE AMOUNT OF ONE HUNDRED AND FIFTY THOUSAND DOLLARS ($150,000.00) WITH THE U.S. DEPARTMENT OF JUSTICE, OFFICE OF JUSTICE PROGRAMS, FOR THE WEED AND SEED CONTINUATION FUND; FURTHER AUTHORIZING MATCHING FUNDS IN THE AMOUNT OF FIFTY THOUSAND DOLLARS ($50,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson asked for an update on the Weed & Seed and the difference between the COPS grant and the Weed & Seed because looking in the budget it is together although it should be separate?

Cheryl Cason, Chief of Police for the City of Opa-locka Police Department came forward and stated that they are working on the COPS program, the Community Operations Bureau under Major Barrett with the Weed & Seed. The Weed & Seed is a strategy, not a grant, composed of four components; the law enforcement, community policing, prevention & intervention treatment and neighborhood restoration. The COPS rehiring grant provided by President Obama is to hire additional police officers for visibility in the community.

Commissioner Johnson asked, is the city able to pay staff from the Weed & Seed?

Chief Cason replied, yes. The city has recently identified a site coordinator for the Weed & Seed.

Commissioner Johnson asked, so in reality the two programs are really complimenting and supporting each other?

Chief Cason replied, yes.

Mayor Kelley said that it should be pointed out, although Chief Cason didn't do it, that everybody who applied didn't receive Weed & Seed funding; therefore, he is glad and appreciative that the city did get the funding for it.

Chief Cason stated that there were three municipalities out of 170 in country that received Weed & Seed and those were Homestead, South Miami and the "great" City of Opa-locka.

Commissioner Johnson suggested that Chief Cason make sure the Weed & Seed activities is on the Office of Community Services calendar.

Chief Cason said the Opa-locka Police Department is collaborating with the Office of Community Services.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

15-12: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO MAKE PAYMENT TO BURNADETTE NORRIS-WEEKS, P.A. FOR LITIGATION LEGAL SERVICES RENDERED TO THE CITY OF OPA-LOCKA, PAYABLE FROM ACCOUNT NO. 28-514390; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by R.T.*

The above resolution was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Tydus to pass the above resolution.

Since this item was deferred at the last commission meeting, Commissioner Johnson asked, had staff reviewed the invoices and what is the balance because Dr. Orji rendered a $10,000.00 payment on February 9, 2010?

Ezekiel Orji, Finance Director / Assistant City Manager for the City of Opa-locka came forward and stated that there was never $10,000.00 given to the former City Attorney on February 9, 2010. He explained that the former City Attorney was paid the monthly fee of $16,666.00 which is 1/12 of the $200,000.00 that the contract provided.

Commissioner Johnson asked, did staff review the invoices for litigation made a part of the resolution supporting documentation and what are the findings?

Dr. Orji stated that the finding is the same as the previous meeting; there was a one month fee which was due to the former City Attorney equal to $16,666.00 which was paid to Mrs. Norris-Weeks according to her contract. The bill before the City Commission is in addition to what's provided for in the contract. The former City Attorney is asking for additional payment for litigation services performed through the time of the contract and those services are outside the normal retention fee. The retention fee was $200,000.00 per year and the $37,000.00 additional invoices presented after her termination would account for other legal services outside that retention amount. The former City Attorney itemized the invoices for litigation which she incurred for the city.

Commissioner Johnson asked, had staff reviewed the invoices in question to know whether or not the city owes the money?

Dr. Orji advised that he reviewed the invoices which pertain to services outside her normal retainer fee.

Commissioner Holmes stated to Dr. Orji that in reality he didn't know whether or not the city owed the former City Attorney this money.

Dr. Orji stated that the city owes Mrs. Norris-Weeks the amount because of the services she performed. In his review, he went back to identify the services representation litigations in which she represented the city on (i.e. the Bellsouth transactions, employee related litigation cases).

In hiring the former City Attorney, Commissioner Holmes stated that anything that came up within the duties while she was here, she was to handle those cases.

Dr. Orji stated that he was not a part of the negotiations to know the scope of services that were agreed upon.

Commissioner Johnson asked for clarification from the City Attorney in terms of the invoices, how did the city keep the money rolling over from one budget to another from 2008 through 2009 and now in 2010? She said staff had enough time to review the documentation and bring back some clarity on this issue because the sponsor of the resolution stated that she would be bringing this item back.

Attorney Geller stated that he reviewed the individual bills submitted.

Commissioner Johnson asked what has the City Manager and Finance done about this issue because nobody is telling her anything.

Manager Patterson stated that the hitch comes with what's written in the contract versus what was agreed upon at the commission meeting when the former City Attorney was employed which is on a tape somewhere.

In reviewing the recording of the commission meeting in question, Mayor Kelley said he could not understand what was being stated because of the volume; however, he had the City Clerk's Office to pull the minutes of the Special Commission Meeting of June 30, 2008 to clear up this issue. The minutes of that meeting during the discussion for the resolution appointing Burnadette Norris-Weeks, P.A. as City Attorney reflects as follows: She further stated the City Attorney's budget totals $363,095.00 and $200,000.00 of that includes what was agreed upon. The remainder deals with other items such as litigation expenses which are not included in the $200,000.00.

He continued by saying that he had the same concern that if the city didn't owe, he didn't want to pay but if they do owe the money then they do need to pay. He said he was not clear on what constitutes litigation. In speaking to the City Attorney he clarified that for him and apparently the items before the Commission are litigation items which fall outside of the scope the $200,000.00. Based on that, it is reflected in the minutes that it's not included in the $200,000.00.

Commissioner Johnson stated that the minutes help clarify the issue but she recalled several items where the Commission brought in other firms for certain items.

Mayor Kelley said he understood what Commissioner Johnson was saying and this is a lesson learned but in terms of what falls under litigation outside the scope which is the items listed and hearing Dr. Orji mention.

Commissioner Johnson stated that all too often staff is not doing a good job in documenting and in her 8 years serving the city, she is not pleased with the supported documentation. Although she didn't understand the process in documenting things very well, she said if this amount is due to Mrs. Norris-Weeks then the Commission needs to render it.

There being no further discussion, the motion passed by a 3-2 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	No
Commissioner Tydus	Yes
Mayor Kelley	Yes

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO DECLARE THE FIRST FRIDAY OF EVERY FEBRUARY AS SCHOOL CROSSING GUARD APPRECIATION DATE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H. and J.K.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

Pedro Bass, Division Chief of Miami-Dade Fire Rescue came forward and stated that there's always a member of staff in attendance at the commission meetings to ensure that they keep in touch with the needs of the community.

Mayor Kelley commended Miami-Dade Fire Rescue and encouraged them to keep up the good work in keeping citizens aware of the dangers and proper use of electric heaters during the cold temperatures.

He further explained that first reading ordinance 14A1 is to include Miami-Dade Fire Rescue as a part of the agenda.

Chief Bass explained that the Fire Department has embarked on a GIS program to improve the accountability of the hydrants within the district. The Fire Department is working very closely with Miami-Dade County water & sewer and they were able to receive information from them specific to GIS coordinates for every specific hydrant. The purpose is that the Fire Department has a responsibility to ensure this appliance is taken care of and maintained. As the Commission is aware, in the City of Opa-locka WASA does not maintain the city's hydrant; therefore, he would like to meet with city and building official to come up with a plan for Opa-locka to provide the Fire Department with the coordinates or whatever mechanism to account for the city's hydrants which will assist in response and to take care of their responsibility to maintain the hydrants.

He requested to meet with the city official and get that information.

Mayor Kelley informed Chief Bass that the City Manager will make sure that takes place.

A. FIRST READING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA TO AMEND THE CITY COMMISSION AGENDA RULES AND PROCEDURE, SECTION 2-45 TO CREATE A NEW NUMBER 10 "REPORT FROM MIAMI-DADE COUNTY FIRE-RESCUE DEPARTMENT"; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE VACATION OF ONE BLOCK OF DUNAD AVENUE FROM BANU STREET TO PERVIZ AVENUE FOR THE EXPANSION OF SHERBONDY PARK; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 4-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Holmes	Out of room
Mayor Kelley	Yes

3. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AMENDING CHAPTER 2, ARTICLE IV, BY CREATING DIVISION 8 "DRUG FREE WORKPLACE" BY PROVIDING REGULATIONS CREATING A DRUG FREE WORKPLACE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION;PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by D.J.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above ordinance on first reading.

Pursuant to the city's Code of Ordinances, Commissioner Tydus stated that it provides for drug testing. She asked, does this ordinance conflicts with what's already on the book? Additionally, it seems that this ordinance may be borderline administrative interference because it seems to be more of an administrative matter than one of legislation.

Attorney Geller explained that there are personnel rules dealing with drug testing and although there was some notion this had been codified previously, the city could not

locate something in the code. As far as the legality of it, although this is applicable to members of boards and commission as well, it otherwise modeled exactly on the ordinance that the City of Hialeah has had on the books for a number of years. He said he is confident that it's legal, providing a considerable amount of privacy protection and things like that. The ordinance itself always requires implementing regulations.

Because this particular legislation didn't provide for random drug testing, Commissioner Tydus asked, is there any reason for that?

Attorney Geller stated that there wasn't a reason but he could certainly look into modifying the ordinance to provide for random drug testing although that was not what he was asked to look at by the sponsor. He was told to look for something similar to what Hialeah has done successfully without challenge and random drug testing may subject the city to challenge on the part some employees, but if that's the desire of the Commission he can look into having random drug testing.

Commissioner Tydus stated that basically this ordinance is upon hiring or appointment to a board.

Attorney Geller explained that there are a number of things that could trigger an employee being subject to drug testing but it currently does not provide for random drug testing.

Commissioner Tydus suggested that the sponsor of the ordinance consider allowing the City Attorney to review including random drug testing and the legalities surrounding that.

Commissioner Johnson agreed and asked the City Attorney if the Commission could amend the ordinance.

Attorney Geller advised that he could certainly do so for second reading depending on how substantive the changes or the Commission could adopt the ordinance as it stands and in the meantime he can look at a subsequent amendment to it once it gets adopted that would include random drug testing. He said there are some issues with that specifically he would need to speak with the representatives of the city's unions to see where they are contractually with the unions and what their attitudes would be on it due to the many employees covered under the unions. The city is currently in negotiations with both unions now and can certainly do so but that would necessarily need to do a passage of this; however, they can certainly begin looking at random by raising it with the representatives of the unions as part of the negotiations.

Commissioner Johnson suggested that the City Attorney look at it and bring it back because the city also has to offer an employee assistant program and enhance confidentiality.

Attorney Geller stated that the ordinance does provide confidentiality and particularly it does speak to the employee assistance program; but again, any ordinance is the starting

place and then the rules have to be adopted by the administration to implement it. He said he would certainly take another look at it in terms of rules as well as raising the issue of random with the two unions as a starting place to include that and if they can move forward. Although it's a worthwhile idea, he wants to make sure he doesn't get a suit by one of the unions.

In that case, Vice Mayor Taylor asked, would the amendments the sponsor and Commissioner Tydus are talking about including in this ordinance affect the negotiations?

Attorney Geller suggested that the Commission adopt the ordinance now because the changes on second reading could be considered substantive.

If the changes on second reading are considered substantive, Vice Mayor Taylor stated that the ordinance is really a new ordinance.

Attorney Geller added that it might mean they would have to go back to first reading.

Vice Mayor Taylor said that was her point. She asked, why would they go through the double work instead of hold the ordinance until the additional changes are made and bring the ordinance back as a first reading.

Attorney Geller stated that the Commission could do it that way but he doesn't know how quickly the unions would get back to the city. The city is scheduled to meet with both of them again and in his report he would briefly report where they are with the two unions but his thought was to adopt the ordinance. He said he didn't mind doing the work or bringing a subsequent ordinance to amend what the Commission already adopted at least then the city would have something on its book in the meantime.

Mayor Kelley suggested that the Commission pass the ordinance as is because there are several issues not just with the unions but the City Attorney has to do discovery from a legal and liability standpoint with the random concept. Therefore, that will take more time then the next commission meeting anyway so he doesn't think it would impede this ordinance on first reading. Upon discovery, the City Attorney can bring back an amendment to the ordinance or a new ordinance to go with but the city can't rush through these issues particularly with the random and the possibility of liability or getting sued.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

4. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E STUDIO 6530C HIGH SPEED COLOR COPIER FOR THE FINANCE DEPARTMENT FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 17-513440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

Out of the four quotes received, Commissioner Johnson asked, why is the company being recommended not the lowest quote? Because the city was leasing many copiers, she suggested having a centralized mail room to cut down on cost. Although she could see the police department having its own copier due to the distance, she would like to see a centralized location versus leasing copiers for every department.

Nelson Rodriguez, Information Technology (IT) director for the City of Opa-locka appeared before the City Commission and stated in terms of the vendor selected that although the monthly lease may be the highest quote, the actual cost per page for copies is least expensive. Additionally, for all these leases the toner and supplies are included and therefore, his best recommendation is Toshiba based on the cost per page.

Commissioner Johnson asked Mr. Rodriguez if he was under the opinion that it would be more cost effective to have a centralized mail room with personnel.

Mr. Rodriguez agreed.

Commissioner Johnson said she is looking at more cooperation in quality savings and where the city is headed, it needs to look into all the non essential spending.

Mr. Rodriguez stated the reason these items are being brought forth to the Commission is due to the city wanting to reduce the number of copiers and printers that are in every department so that there's only one device for printer, copying, scanning for an area or department. He said he was of the opinion that the city should move in that direction.

In hearing what Commissioner Johnson was saying, Mayor Kelley said that Mr. Rodriguez agreed with her but does the leasing of these copiers move the city towards centralization to lower the cost and make the city more cost effective?

Manager Patterson stated that the lease for the copier in the City Manager's Office is up for renewal. He agreed that the city should move into getting rid of copiers in every

office and go to the central set up. However, in terms of the copiers for the police department, one is a larger machine and the other is a smaller machine.

Of concern to Mayor Kelley was the fact that since there were four items on the agenda for copiers that the Commission was not going to see any other copiers coming before them for leasing for other departments unless the lease are up for renewal.

Vice Mayor Taylor noticed that ordinances 4, 5, 6, and 7 basically covered the same thing but Mr. Rodriguez was talking about the number of cost; however, he chose the cheapest one for the Finance Department and she wants to know the reason for that. Secondly, would this networking create a bottleneck for centralized copying? Also at this point, if the other department leases are up, where would they go to make their copies if the city is not going to renew the lease?

Based on the amount that the Finance Department is currently printing on the network printers, Mr. Rodriguez stated that he didn't feel that department needs an extensive machine that can handle a high output but supplies a sufficient amount of output and scanning capabilities.

Vice Mayor Taylor asked, aren't the flyers coming out of the City Manager's Office?

Mr. Rodriguez said he was under the impression that Vice Mayor Taylor asked about the Finance Department.

Vice Mayor Taylor stated that she noticed that Mr. Rodriguez chose the highest quote for the first three copies and the fourth was the cheapest. Because the leases were for four years, she said the Commission should have had a pre-conference on this.

In having contracts for a long period of time, she suggested that the City Manager should inform the Commission prior to placing it on the agenda. Also, when the department's leases expire, where would they go?

Mr. Rodriguez stated that every department has a copier machine and the idea is to utilize the neighboring department.

Vice Mayor Taylor asked, if the lease for the Public Works Department copier goes out does that mean that department has to come to Town Center for copies?

Mr. Rodriguez that the Public Works Department in not neighboring to any other department just like the police department.

Vice Mayor Taylor stated that she was piggybacking on what her colleague said about not wanting to come back for copiers when the leases runs out.

With regards to the Public Works Department, Mr. Rodriguez said the City Manager would have to come to the Commission with the request for renewal of the lease.

Vice Mayor Taylor asked, is the city moving toward one centralized location at Town Center?

Mr. Rodriguez said that would be his recommendation.

Manager Patterson advised that the city is looking at centralizing copying in Town Center with the exception of the police department and the Public Works Department because of their location.

There being no further discussion, the motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

5. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 5520C HIGH SPEED COLOR COPIER FOR THE POLICE DEPARTMENT, PATROL AREA FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 19-524440; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolution was read by title by Attorney Geller.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

6. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 4520C HIGH SPEED COLOR COPIER FOR THE POLICE DEPARTMENT, ADMINISTRATION AREA FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 19-524440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND

REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE QUOTE FROM TOSHIBA BUSINESS SOLUTIONS FOR AN E-STUDIO 6530C HIGH SPEED COLOR COPIER FOR THE OFFICE OF THE CITY MANAGER FOR A FORTY-EIGHT (48) MONTH LEASE PAYABLE FROM ACCOUNT 17-513440; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY AND CODIFICATION; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above ordinance was read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance on first reading.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

B. SECOND READING/PUBLIC HEARING:

C. RESOLUTION(S):

15. ADMINISTRATION:

CONSENT AGENDA:

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA ACCEPTING THE PROPOSAL OF THE METROPOLITAN CENTER OF FLORIDA INTERNATIONAL UNIVERSITY (HEREINAFTER "FIU/MC") FOR THE PREPARATION OF THE CITY OF OPA-LOCKA'S COMPREHENSIVE PLAN AMENDMENTS AS REQUIRED BY SECTION 163.3193, F.S. (2005); FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE A PROFESSIONAL SERVICES AGREEMENT WITH FIU/MC FOR SAID SERVICES, IN AN AMOUNT NOT TO EXCEED TWENTY-FIVE THOUSAND DOLLARS ($25,000.00), PAYABLE FROM ACCOUNT NO. 37-515312; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING AN EFFECTIVE DATE. *Sponsored by C.M.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, TO AUTHORIZE THE CITY MANAGER TO APPLY FOR FY 2010 / FY 2011 FEDERAL JOB ACCESS RESERVE COMMUTE (JARC) FUNDING AND FURTHER ENTER INTO AN INTERLOCAL AGREEMENT WITH SOUTH FLORIDA REGIONAL TRANSIT AUTHORITY (SFRTA) FOR OPERATION OF A BUS SHUTTLE SERVICE (SOUTH ROUTE OF LOCAL CIRCULATOR SYSTEM) AND PROVIDE MATCHING FUNDS IN SUPPORT OF THE OPERATING COST OF THE BUS SHUTTLE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO APPLY FOR INCLUSION IN THE STATE REVOLVING FUND (SRF) LOAN PROGRAM FROM THE DEPARTMENT OF ENVIRONMENTAL PROTECTION, DIVISION OF WATER RESOURCE MANAGEMENT; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING AN EFFECTIVE DATE. *Sponsored by C.M.*

11. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA AUTHORIZING THE CITY MANAGER TO APPLY FOR HOPE VI MAIN STREET GRANT FROM THE DEPARTMENT OF HOUSING AND URBAN DEVELOPMENT REQUESTING FUNDS IN THE AMOUNT UP TO ONE MILLION DOLLARS ($1,000,000.00); PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by C.M.*

The above resolutions under the consent agenda were read by title by Attorney Geller.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the consent agenda resolutions.

The motion passed by a 5-0 vote.

Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes

Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Patterson said he hoped the Commission liked the 24 hour turn around time for reporting back to the Commission on their concerns. He briefly reported that the Mayor's work task force would start on the following day and that the city's website would be up and running on May 1, 2010.

He advised the Commission that the bids for Sherbondy Park would be coming to him and he would be coming back to them at the next meeting for a recommendation on a contractor.

He further stated that he provided the Commission with a table of organization which is a slight different from what the city had before. This table includes the two assistant city managers Dr. Orji and Octavian Spanner.

Commissioner Johnson asked if the website was outsourced.

Nelson Rodriguez, IT Director for the City of Opa-locka came forward and stated that the website was outsourced. The website in production now and being programmed by CivicPlus was an agenda item approved by the Commission. The current temporary website that is up is to provide the community with links to employment, RFP information, etc. is something that he and the help of a friend did for the city free of charge.

Of concern to Commissioner Johnson was the $20,000.00 the Commission approved for a website.

Mayor Kelley expressed his concern about the current website and the link for the Miami Herald which requires registration. He asked, is there another way to link to the Miami Herald without having to go through the registration process.

Mr. Rodriguez stated that unfortunately that is something controlled by the Miami Herald; but he would work on bringing the articles on the city's website with the permission from the author.

Commissioner Johnson asked for the status of relocating the City Commission Chambers to the 2nd floor at Town Center because the city had spend plenty money on furniture for that purpose.

Mr. Rodriguez recalled an RFP for the equipment required to relocate the Commission Chambers to the 2nd Floor; but unfortunately he doesn't know where the city stands on that. However, he does have the documentation and would forward it to the City Manager.

Commissioner Johnson suggested that Mr. Rodriguez follow up on this matter in addition to providing the City Manager with a report.

She continued by asking for the status on the audit.

Manager Patterson advised that the audit is currently in progress but is not yet completed.

Dr. Orji stated that the audit was still in progress and it is estimated to be completed by the March 15, 2010.

During the last audit report, Commissioner Johnson recalled the auditor mentioning that there was documentation not provided to them. She suggested that the city provide the auditor all documentation required to complete the audit. She said if all of the bonuses and raises were highlighted which was not given to the auditor then she would not have had to do the discovery she did to come up with the documentation.

Dr. Orji reassured the Commission that the auditor is provided with all the items requested at the beginning of the audit.

Commissioner Johnson directed the City Manager to provide the Commission with a list of employees along with the benefits received to include insurance, deferred compensation and car allowances. She said she noticed individuals are receiving car allowances in addition to driving city vehicles and that should not be.

She requested that the City Manager provide the Commission with the status on the Trolley for the city and the bus for the senior citizens.

Since the budget workshops are scheduled for April, Vice Mayor Taylor directed the City Manager to look into the possibility of allotting approximately $60,000.00 in allocation to divide the city advertisements among various newspapers.

Manager Patterson advised of the statutory requirement which provides that the city must advertise in a newspaper with the largest circulation.

Vice Mayor Taylor directed the City Manager to look into the research of the Opa-locka Police Department to see about bringing their salaries up.

Manager Patterson stated that the city is currently looking in the salaries for the police department.

Vice Mayor Taylor asked that the City Manager provide the Commission with a report as to how much the city has paid the Miami Herald to date for advertising going back four years. Additionally, she asked that the City Manager look into the possibility of increasing the City Manager's discretionary from $3,500.00 to $5,000.00.

She continued by saying that the city has a new vendor in the city for residential solid waste collection which would provide new garbage cans to bring a unification to the residents and city. Of concern was the fact that if those garbage cans are full, the senior citizens and handicap can not bring those to the front. Perhaps the city can find a central location where perhaps the Urban Rangers can bring the cans up to the street for those particular citizens.

Manager Patterson said he had done that exact same thing in other cities and as a matter he first started in the City of Miami. The rules were if a person was handicap or a senior and physically unable to take care of themselves then they would call in and the city would make up a list provided that a note from the doctor is submitted.

In mentioning the new haulers, he said that he met with the representatives and they want to get started on March 1, 2010; however, there are some properties in which the city's ordinance is in conflict with what the city is doing. The ordinances talks about duplexes are single family; triplex, fourplexs and up are considered to be multi-family and the city must synchronize that so that the city is practicing what it preaches. The city is doing one thing but the ordinance states something else.

Because the city is divided into zones, Vice Mayor Taylor suggested having zone meetings working through the OCS Department to explain about the new garbage cans but mainly to help put a strong emphasis on the census because she doesn't feel that enough emphasis is put out on the importance of the census.

With regards to the Census, Mayor Kelley said in hearing the directive given by Vice Mayor he suggested that the City Manager make sure the census is through the City Clerk because she has worked very hard on the Census.

Commissioner Tydus apologized to the City Manager and staff member that was treated with disrespect and very unprofessionally by the City Clerk the previous week. Her understanding was that this was reported to the Commission and if it was she's not sure what their sentiments are; however, the conduct is unacceptable and it does demise what she stands for and she would hope what her colleagues stand for as well. This particular public display or outrage is disruptive to other employees and if members of the general public were present then it compounds the situation as well. She advised the City Clerk that she should refrain from this kind of public outrage.

Clerk Irby said she had no idea what Commissioner Tydus was talking about.

Commissioner Tydus continued by advising the City Clerk from further public outrages and she would expect that she along with the Commission is represented in a courteous, professional manner. If this happened to be the first incident that would be one thing but this seems to have escalated into what she calls a phase of bullyism and she is not about that. The City Clerk's attitude, conduct and performance as well as staff and employees but more specifically those that are appointed by this Commission represents this Commission. She said she does not expect any of the appointed officials, staff or

employees period to misrepresent the city or the Commission. She asked that the City Clerk make every effort to respect and to honor each and every employee because she doesn't want to hear any more incidences like this.

She continued by asking the City Manager who was responsible for the publication of the city's newsletter specifically the latest one.

Manager Patterson replied, Christina Gordon.

Commissioner Tydus stated that the newsletter was unacceptable because it is very self serving; there's no mention of any of the commissioners and there's a certain protocol that has to be followed, acknowledged and practiced. That protocol would include that there be some mention of the elected officials of the city when talking about a city newsletter. The back page of the newsletter is dead information and if the Commission could not be mentioned on the front page as they normally are then it could have been on the back page.

She directed the City Manager to provide a report as to why the newsletter is the way that it is and in the future she would like the final draft of all newsletters to be approved by the Commission which is the normal practice for other municipalities.

As the Commission, Commissioner Holmes stated that they only hire and fire three individuals and all three of those people have a place on the dais; therefore, anytime there's an accusation being made against an individual on the dais then that person should have the right to respond.

He continued by saying that the newsletter was put out to promote the Census and it has the Census on the front, in between the pages and on the back.

He further asked for an update on the demolition of the Water Plant?

Manager Patterson advised that the contractor is in the process of obtaining a permit from Miami-Dade County DERM and that's what holding it up.

Commissioner Holmes thanked the City Manager for the flag poles erected in front of Town Center.

Commissioner Johnson directed the City Manager to check out the opportunity of having the 1st floor at Town Center as a payment office for utility bill payments. In addition to that, she asked that he look at the Opa-locka branch library because it is closed on Fridays and opened on Saturdays and she believes it can get more utilization if it is opened on Monday – Fridays.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director / Assistant City Manager for the City of Opa-locka came forward and stated that the city's bills are being paid.

Commissioner Johnson asked, when could the Commission expect the next report?

Dr. Orji advised that it would be provided on February 24, 2010.

Commissioner Johnson recalled asking the Finance Department to bring back a report at every meeting stating what is due to be paid within the next two weeks and she never received that report.

16. OFFICIAL BOARD REPORTS:

17. CITY ATTORNEY'S REPORT:

Attorney Geller provided a brief report to the Commission on the PBA meeting recently held and obviously when the city is close to the end he may need to request an executive session. Additionally, he has a teleconference with AFSCME sometime between now and the next meeting.

He continued by providing an update on the case relating to the shut down of the Flea Market. In addition there's a matter called GFM where the city is trying to recover money owed which has not been paid. Initially, the previous attorney indicated that was a matter the city would like to continue on with and he has a meeting scheduled with her to be brought up to speed on the matter. On both of these matters, he had conversations regarding moving to mediation; therefore, he would be requesting an executive session with the Commission at least on both of those issues.

Vice Mayor Taylor asked for an update on the city's cases without going into specifics?

Attorney Geller stated that there are not many cases because the Marland case is settled but there are a few out there. He said there's one public records case in addition to the foreclosures but it is fair to say that the two substantial cases are the ones involving the Flea Market.

Vice Mayor Taylor reminded the City Attorney about having contractors pull permits when conducting utility work in the city and seeing about the city's off duty officers man those projects.

Attorney Geller said that through the City Manager he would get with Public Works to address the permits and he'll see what he can do in the process of that.

Commissioner Johnson informed the City Attorney that a resolution was passed in 2007 for off duty police officers to work on city projects.

She directed the City Attorney to get with her and Starex Smith on the educational compact because there were revisions made to it and she would like to bring it back in order to present it to the school board.

She further directed the City Manager to start working with the City Manager to start purchasing foreclosed homes and bring back a report to the Commission on the progress. In addition to that, she said it was brought to her attention that Aramark was looking to purchase land from the city which was utilized for years and she would like the City Attorney to bring back a report on this matter.

Commissioner Johnson said she'd been on CSX for years in terms of the maintenance of the city's railroad tracks. She directed the City Attorney to get with CSX to make sure they are keeping up with the maintenance and hold them accountable.

Because of the nature of CSX contract and the monopoly that they hold, Attorney Geller stated that they are very difficult but he would pursue the issue aggressively.

Commissioner Holmes directed the City Attorney to look into a retirement package to include deferred compensation, life insurance, etc. for the Commission who served for a period of 8 years or more. He suggested that the City Attorney conduct research on other municipalities in terms of their retirement package for their elected officials and bring back a recommendation to this Commission.

Attorney Geller informed Commissioner Holmes that he is working on this issue and would be bringing something back.

Commissioner Holmes informed the City Manager that there are still a lot of citizens in the city complaining about the high water bills and he would like him to prepare looking at the next level to bring the citizens additional relief.

Mayor Kelley suggested that the City Attorney speak to the City Manager about the city's job initiative to hire local residents to cut and board to create some language and work within the parameters of receiving funding to keep that going.

Attorney Geller advised that he had a preliminary discussion on this issue.

Mayor Kelley directed the City Attorney to provide an update as to where he is on this issue.

18. CITY CLERK'S REPORT:

Clerk Irby reported that the Census 2010 is going extremely well and she is working hard finally tracking down those 700 individuals who were tested for jobs. She has been meeting with the Census and they are beginning to identify those citizens who would be employed after April 1, 2010. Additionally, she would be signing an agreement with the

office in Miami Gardens for what they would call the Community Assistance Office to have an inside person at City Hall to answer questions relating to the Census.

She explained that the newsletter was put together as a special edition for the purpose of the Census which was discussed at the commission meeting; if anyone had anything to input they could have told her and she would have included it.

Further, she stated that she was accused of disrespecting someone and she would wish these accusers would come forward because for almost twenty years she'd been hearing this and it is not true. People need to listen to both sides of the story because she works hard both inside and outside of City Hall and she knows her job and does it very well. Being 59 years old, she said she would not sit there being chastised and treated like some non entity because she is a grown woman. If anyone has something to say or accuse her of then they need to say it.

Commissioner Johnson commended Mrs. Irby for a job well done on the Census although the Commission and employees must pull together to get the word out.

Vice Mayor Taylor stated that the Census is very important to the Commission but she kind of agrees with Commissioner Tydus because they are not included in special edition newsletter. In visiting other cities, she noticed that the Commission or the city is pushing the Census; but the newsletter has the appearance that only one person is. The Commission is not mentioned in the newsletter for the Census and it should be that the City of Opa-locka or the City Commission is pushing the Census.

She continued by saying that she would continue to work with the City Clerk on the Census to move that number from 16,000.

Mayor Kelley commended the City Clerk for the work she is doing on the Census; the mayor's picture is on the front of the newsletter and as the mayor he doesn't have a problem with his picture there. Although the City Clerk didn't consult him, he thought it was a good thing. However, in most things that he does, he always tries to make sure the Commission is inclusive. He suggested that the City Clerk let this be a learning lesson and encouraged her to continue the hard work because of the importance of making sure everyone is counted.

He further stated that there are individuals already out claiming to be from the Census and the city must be mindful of that and get that story out there as well.

Commissioner Tydus said she didn't want the focus to not be where she meant for it to be and that is on proper protocol to be followed. The city has a regularly scheduled, published newsletter and she understood that this was a special edition and special edition to her means that an addition would have been included in the $5,000.00 promotional package approved. This appears to be the regularly scheduled newsletter aside from what was approved. If there was a special edition with the emphasis placed on the Census then that's fine and good but it should have been a part of the $5,000.00 approved for special

Census promotion and that was not done. She said whether it was special edition or regular edition, there was proper protocol to be followed and that was not done.

19. MAYOR/COMMISSION REPORT:

Vice Mayor Taylor expressed her concern about the fact that her business always seemed to get tied up into city stuff when it is separate. On the Commission she is there to represent the citizens of Opa-locka which she has done. She spoke about an allegation send to her by the Ethics Commission and it says that the allegation reads as such: This matter was predicated upon the receipt of information from former Opa-locka Commissioner Steve Barrett. Mr. Barrett stated that there may be a possible fraud scheme between Commissioner Myra Taylor and MMAP involving a lease agreement between MMAP and an entity called the Martin Luther King, Jr. Learning Academy that alleged operated at the Taylor's school. What was quoted was Section 2-11.1 of the Code of the Miami-Dade County Ethics "Exploitation of Official Position prohibited". Then they went on to do investigation with the people at Miami Action Plan. After they did their investigation the last portion in the letter stated: there was not to be appeared any violation of this Section of the Miami-Dade County conflict of interest.

She went on to say that she doesn't hurt or bother anyone and she is there to do a job for the citizens; therefore, to pick her out is something absolutely unnecessary. This happened at her business and her business is not connected to the City of Opa-locka; therefore, picking at her about her personal business is not productive to the progress of the City of Opa-locka. The focus should not be on her but how to better the City of Opa-locka. She asked everyone to get off Mrs. Taylor and get on to the business about the city.

She announced that the Civil Rights Supper would be held on February 27, 2010 and solicited everyone support. She thanked the Commission for their support in this effort.

Commissioner Johnson reported that the Community Action Agency (CAA) was accepting scholarships for youth.

She requested for Shawn Williams to attend an event on with her on Friday, February 12, 2010 @ 1:00 p.m. in which she would be the keynote speaker for the Miami Job Corps graduation.

She continued by reported working with a local community newsletters that does a great job in broadcasting Miami Gardens and it would be a great opportunity for the city.

She further thanked staff for assisting her with the Youth Prevention Summit to be held on February 20, 2010.

Commissioner Johnson informed the Commission that she would be getting with the City Manager about finding money to get Commission aides.

Commissioner Tydus stated that she is working with an organization called the Pathway Home on planning an event at no cost to the city commemorating Women's History Month to be held on March 13, 2010.

Mayor Kelley informed Commissioner Tydus that he was working on something for Women's History Month.

Commissioner Holmes commended the City Clerk and staff for a job well done on the Census. He further spoke about an element in the city that is trying to hold Opa-locka back; but there comes a time when the Commission must make a liar out of those people and not let them get away with it.

Mayor Kelley thanked his colleagues who were able to make it to the Summer Job Initiative Luncheon with the businesses who supported the effort this past year for youth summer jobs. In light of the fact that it's a down year and the economy is very challenged, the businesses still participated in some way and even those who couldn't participate understood the importance of having the program.

He reported that he continues to work on the Magnolia North Housing challenges and the city has been having discussions with Commissioner Jordan trying to get that moved along. Hopefully by the next meeting the City Manager would have good news on that.

Additionally, he had the opportunity to attend a prominent citizen's funeral a few weeks ago.

He further reported his attendance at the Senior's valentine reception at the Arch Bishop McCarthy Residence.

In attending the South Florida Regional Planning Council Meeting, Mayor Kelley stated that it is important for them to keep in mind as a city is that a lot of the transportation and economic development issues and challenges coming before South Florida; there's really a push to do everything in collaboration and regional basis. As the city looks to improve, the mindset is changing although there are a lot of opportunities out there. The must make sure they do their best in going out for funding. This always brings the fact that the city must make sure it has it house order and he was glad to see the Commission passed legislation for the Comprehensive Plan Amendment and FIU working with the city which is critical for the city economic development in moving forward.

Although the City Manager failed to mention, Mayor Kelley stated the city is working on its CRA and those related item and hopefully at the next meeting the City Manager would have something for the Commission on that.

With regards to the League of Cities, he said he working on upcoming initiatives for the upcoming legislative session that there have been many bills filed; some have city impact particularly those dealing with unfunded or challenges to local rule. One of these deals with the predator law changes which the state wants to supersede and come up with the

law that mandates what the feet limit may be. Anytime there's funding mandates that are not funded with state dollars, it's an impact on local government to provide for services and pay for it.

20. OFFICIAL BOARD APPOINTMENTS:

Vice Mayor Taylor suggested that the City Manager speak with the Parks & Recreation Director to get some of the parents involved to serve on the Community Relations, Recreation & Activities Advisory Board.

Commissioner Johnson recommended that one of the individuals be a senior.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Commissioner Holmes to adjourn the meeting at 10:10 p.m.

ATTEST:

MAYOR

CITY CLERK